

SENATE No.**The Commonwealth of Massachusetts**

PRESENTED BY:

Patricia D. Jehlen*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring law enforcement identification for public safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>1/13/2026</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>1/12/2026</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/12/2026</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/17/2026</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>1/13/2026</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>1/15/2026</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>1/15/2026</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>1/15/2026</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>1/16/2026</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/20/2026</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>1/20/2026</i>
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>1/20/2026</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>1/21/2026</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>1/21/2026</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>1/22/2026</i>

<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>1/26/2026</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/26/2026</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>1/27/2026</i>
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>1/28/2026</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>1/29/2026</i>

SENATE No.

By Ms. Jehlen, a petition (accompanied by bill) (subject to Joint Rule 12) of Patricia D. Jehlen, Rebecca L. Rausch, James K. Hawkins, Jason M. Lewis and other members of the General Court for legislation to ensure law enforcement identification for public safety. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring law enforcement identification for public safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 10 of Chapter 6E of the General Laws is hereby amended in the
2 first paragraph by inserting after item “xvi” the following new item:- (xvii) the officer used a
3 mask or personal disguise in violation of section 34B of chapter 268

4 SECTION 2. Chapter 268 of the General Laws is hereby amended by inserting after
5 Section 34A the following new section:-

6 Section 34B. Use of a mask or personal disguise by a law enforcement officer.

7 a) As used in this section, the following words shall, unless the context clearly requires
8 otherwise, have the following meanings:

9 “Agency”, a law enforcement agency.

10 “Law enforcement agency”, (i) a federal, state, county, municipal or district law
11 enforcement agency, including, but not limited to: a city, town or district police department, the

office of environmental law enforcement, the University of Massachusetts police department, the department of the state police, the Massachusetts Port Authority police department, also known as the Port of Boston Authority police department, and the Massachusetts Bay Transportation Authority police department; (ii) a sheriff's department in its performance of police duties and functions; (iii) a public or private college, university or other educational institution or hospital police department; or (iv) a humane society police department in section 57 of chapter 22C.

"Law enforcement officer" or "officer", any officer of an agency, including the head of the agency; a special state police officer appointed pursuant to section 57, section 58 or section 63 of chapter 22C; a special sheriff appointed pursuant to section 4 of chapter 37 performing police duties and functions; a deputy sheriff appointed pursuant to section 3 of said chapter 37 performing police duties and functions; a constable executing an arrest for any reason; or any other special, reserve or intermittent police officer.

"Mask" or "personal disguise", any covering that obscures the face of an officer that renders them unidentifiable, or any clothing that conceals an officer's status as an officer; this does not include a face shield if it does not conceal the wearer's face.

b) Any officer found to be utilizing a mask or personal disguise while performing their duties shall be required to pay a fine of not more than \$1000.

c) An officer is exempt from this section for the purposes of: (i) active undercover operations or assignments authorized by court order; (ii) tactical operations and states of emergency declared by the governor where protective gear is required for personal safety; (iii) compliance with applicable law governing reasonable accommodations for a documented disability or occupational health and safety; or (iv) protection of identity during active

- 34 prosecution; provided, however, that a mask or personal disguise may be used only if no other
- 35 reasonable alternative exists and the necessity is documented.